

**DECLARATION OF PROTECTIVE AND RESTRICTIVE COVENANTS
LOTS 1-50 SHAMROCK ADDITION IN THE NE ¼ OF SEC. 23, T111N,
R79W, HUGHES COUNTY, SOUTH DAKOTA**

THIS DECLARATION OF PROTECTIVE AND RESTRICTIVE COVENANTS applies to include Lots 1-50, Shamrock Addition in the NE ¼ of Sec. 23, T111, R79W, Hughes County, South Dakota.

Thomas M. Maher, Margaret L. Maher, or any lot owner, shall have the right to enforce, by any proceeding at law or in equity, all restrictions, conditions, covenants, easements, reservation, liens, and charges now or hereafter imposed by the provisions of this declaration. Failure by Thomas M. Maher, Margaret L. Maher, or any owner to enforce any covenant or restriction contained in this declaration shall in no event be deemed a waiver of the right to do so at a later date.

Invalidation of any one of the covenants or restrictions contained in this declaration by judgment or court order shall in no way affect any other provisions, which shall remain in full force and effect.

These covenants are to run with the land and shall be binding upon all parties and all persons and entities owning lots in Lots 1-50 Shamrock Addition in the NE ¼ of Sec. 23, T111, R79W, Hughes County, South Dakota, or claiming under them until January 1, 2025, on which date these covenants shall automatically be extended for a period of 10 years, and thereafter in successive 10 year periods, unless on or before the end of one of such extension periods or the base period, the owners of a majority of the lots in the subdivision as they are now platted, shall, by written instrument duly recorded and acknowledged declare a termination of the same and the property shall be subject to, in addition to the hereinafter set covenants, all zoning ordinances of Hughes County, South Dakota. If the owners of such lots, or portions of such lots (if a lot is further subdivided as allowed herein) or any of them, or their heirs or assigns, shall violate any of the covenants as hereinafter set forth, it shall be lawful for the subdivider/developer or an owner owning real property situated in all lots in Shamrock Addition, or the Association of landowners of all lots in Shamrock Addition to pursue any proceedings at law or in equity against the person or persons violating any of such covenants, and prevent or recover damages for such violations, or both.

These covenants and restrictions may be amended by duly recording an instrument of amendment executed and acknowledged by not less than seventy-five percent (75%) of the owners of the lots as they are currently subdivided with each lot having one vote.

1. The subdivision shall be a single-family residential subdivision only and shall be used solely for residential purposes.

2. It shall be the responsibility of the landowners to form the Association of landowners of Lots 1-50 Shamrock Addition

3. Any home constructed on a building site shall have a minimum main floor area of the main structure, exclusive of one-story open porches or decks and garages, of not less than 1,200 square feet for a one-story dwelling. In the case of a multiple-story or split-level dwelling, the lower or ground floor living level shall be not less than 1,000 square feet.

4. No tent, shack, garage, barn or other outbuildings shall at any time be used as a residence, temporarily or permanently, on any building site.

5. No mobile home or house trailer shall be used as a residence or be located upon such lots, however a lot owner may move in a mobile home or house trailer for a period of 12 months for use during construction of a permanent residence, but shall then be removed. New "double-wide" or pre-built "modular" homes will be allowed if the residence is placed upon an acceptable permanent foundation. "New" shall mean manufactured within 4 years of date moved on lot. Thomas M. Maher and Margaret L. Maher retain the sole right and discretion to pre-approve any residence or plan to move a "double-wide", "modular" home, or other previously constructed residence onto a lot. However, Lots 1, 2, 3, 4, 5, 30, 31, 32 and 33 shall be new "stick built" constructed homes only.

6. All septic tank systems, drain fields, and wells must comply with State of South Dakota and Hughes County statutes, ordinances and regulations.

7. No trash, garbage, ashes or other refuse, junk, vehicles in disrepair, underbrush, weeds, or other unsightly growths or objects, shall be maintained or allowed on any lot. All fences and buildings shall be kept in a state of repair. All residences, garages and accessory buildings shall be painted or stained from time to time, so as to maintain a reasonable state of repair.

8. By acceptance of the deed or other instrument of conveyance for his or her lot within the subdivision, each lot owner shall be a member of the Association of landowners of Lots 1-50 Shamrock Addition and covenant and agree to abide by the Association's By-Laws, rules and regulations and pay to the Association annual assessments or dues and special assessments, payable for maintenance and repair of the roads usable by the subdivision, snow removal, and enforcement of the covenants contained herein. The annual assessments or dues and special assessments shall be a continuing lien on the property affected and shall also be a personal obligation of the owner of such property on the date when the assessment is due.

9. Animals may not be raised, bred, or kept for commercial purposes and, those animals kept outside shall be limited to not more than three (3) adult (over six month of age) dogs, three (3) adult cats, and four (4) adult horses.

10. All improvements on a lot shall remain the sole responsibility of the lot owner. Lot owners shall be responsible for maintaining, improving, and repairing their private driveway.

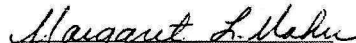
11. Owners shall comply with any applicable soil erosion standards in the construction of any improvements on their property.

12. There are hereby reserved for the purpose of installing and the maintaining public utility facilities, and for such other purposes incidental to the development of the property, all easements reasonably necessary to bring water, electric, telephone, cable television, and other utility distribution lines including natural gas or other utilities to all lots in said Shamrock Addition. All claims of damages, if any, arising out of the construction, maintenance, and repair of utilities or on account of said easement are waived by the owners and there shall be no charge for same. All electric, telephone, cable television, and other utility distribution lines including natural gas or LP gas tanks and lines shall be located underground except the LP gas tanks may be maintained above ground only if screen for view by an appropriate fence box or landscaping materials.

13. All of the provisions of the declaration shall be deemed to be covenants running with the land, and shall be binding on and inure to the benefit of the owners of the properties described as 1-50 Shamrock Addition in the NE ¼ of Sec. 23, T111, R79W, Hughes County, South Dakota, their heirs, successors, and assigns, and all parties claiming by, through, or under them shall be taken to hold, agree and covenant with such owners, their successors in title, and with each other, to conform to and observe all of the terms and conditions contained in this declaration.

DATED this 23rd of November, 1999.


Thomas M. Maher

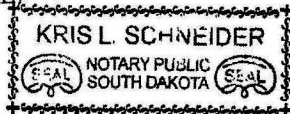

Margaret L. Maher

State of South Dakota)
 :SS
County of Hughes)

On the 23rd day of November, 1999, before me, the undersigned officer, personally appeared Thomas M. Maher and Margaret L. Maher, as owners of the aforementioned property executed the foregoing instrument for the purposes therein contained, by signing their names as such owners.

IN WITNESS WHEREOF, I hereunto set my hand and official seal this 23rd day of November, 1999.

(SEAL)



Kris L. Schneider

Notary Public - South Dakota

Notary Print Name: Kris L. Schneider

My Commission Expires: 7-12-2005

#8652

STATE OF SOUTH DAKOTA } ss.
County of Hughes

Filed for record this 23rd day of Nov, 19 99

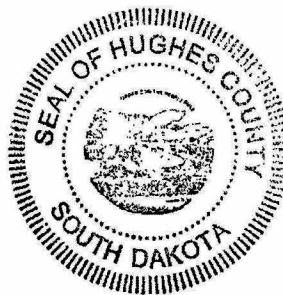
at 9:30 o'clock A. M., and recorded on Disk 1B

of #8652

[Signature]
Register of Deeds

Deputy

Fee \$16.00



Prepared by: Thomas P. Maher
MAHER & ARENDT
201 North Euclid Ave., Ste. 1
Pierre, SD 57501
(605) 224-0491